

an incident to prevailing in the action at trial or on appeal.” (§ 1033.5, subd. (a)(16); *Wagy v. Brown* (1994) 24 Cal.App.4th 1, 8.)

A token or bad faith offer does not trigger Section 998’s cost shifting provision. (*Wear v. Calderon* (1981) 121 Cal.App.3d 818, 821.) The trial court has discretion to determine whether the offer was made in good faith. (*Regency Outdoor Advertising, Inc. v. City of Los Angeles* (2006) 39 Cal.4th 507, 531.) Reasonableness is measured by the circumstances which existed at the time and “by determining whether the offer represents a reasonable prediction of the amount of money, if any, [the offeror] would have to pay [the offeree] following a trial, discounted by an appropriate factor for receipt of money by [the offeree] before trial” (*Elrod v. Oregon Cummins Diesel, Inc.* (1987) 195 Cal.App.3d 692, 699.) The party challenging the reasonableness of the 998 offer bears the burden of proof. (*Id.* at 700.) The following factors are considered: the ultimate jury verdict, defendant’s apparent liability, plaintiff’s damages, insurance coverage, jury reports, and information available to the plaintiff. (*Id.* at 698-700.)

Where a verdict is a more favorable outcome than a party’s §998 offer, that fact constitutes prima facie evidence that the offer was reasonable. (*Smalley v. Subaru of America, Inc.* (2022) 87 Cal.App.5th 450, 458.) The burden is therefore on the offeree to prove the offer was in “bad faith.”

Here, the court finds that Defendant has failed to meet his burden of establishing that the offer was made in bad faith. Here, the jury returned a special verdict finding that Plaintiff suffered total economic damages in the amount of \$240,000 and non-economic damages in the amount of \$302,000, for a total award of \$542,000. Plaintiff’s § 998 offer of \$75,000, which is significantly lower, constitute prima facie evidence that the offer was reasonable. Defendant has not offered any admissible evidence to establish that the offer was unreasonable. Instead, Defendant merely categorically argues that because Plaintiff’s §998 offer exceeded policy limits, the offer was de facto unreasonable. Defendant has not addressed any of the factors for challenging the reasonableness of a 998 offer, e.g., the ultimate jury verdict, defendant’s apparent liability, plaintiff’s damages, jury reports, and/or what information was available to plaintiff. Indeed, an offer in excess of the policy limits, in and of itself, does not demonstrate that a Plaintiff acted in bad faith. (*Aguilar v. Gostischef* (2013) 220 Cal.App.4th 475, 480-481).

For this reason, Defendant’s request to tax Plaintiff’s prejudgment interest is DENIED.

In Plaintiff’s opposition, Plaintiff has updated the amount of prejudgment interest to \$68,750.90. The updated amount requested by Plaintiff for prejudgment interest is GRANTED. (Code of Civ. Proc. § 3291 (prejudgment interest continues to accrue until judgment is satisfied)).

Item 1: Filing and Motion Fees

Defendant seeks to tax \$460.75 in filing fees as unsupported. The opposition explains that Plaintiff seeks costs related to filing the complaint plus a \$35.75 e-filing service fee. The court finds that \$460.75 is a

reasonable cost for filing and motion fees in this action. The request to tax/strike this cost is DENIED.

Item 4: Deposition Costs

Defendant requests that the entire \$21,625.69 in deposition costs be taxed/stricken. Alternatively, Defendant requests that \$11,462.30 costs for defense expert witness depositions be taxed and \$6,917.20 for the taking of Plaintiff's non-retained experts be taxed.

"Section 1033.5, subdivision (a)(3), permits a prevailing party to recover the cost of '[t]aking, video recording, and transcribing necessary depositions including an original and one copy of those taken by the claimant....'" (*Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 56.)

" 'The necessity for a deposition and for the related expenditures is a question for the trial court's sound discretion. [Citation.] The burden of proof that the deposition was unnecessary ... is on the party seeking to have that item taxed.... [Citation.]' [Citation.]" (*Silver v. Gold* (1989) 211 Cal.App.3d 17, 26.) The burden of proof is on the party challenging the deposition cost "to present some evidence that the [Plaintiff] had taken unnecessary depositions." Where, on its face, the cost item was proper and uncontroverted, the cost is properly allowed. (*M. C. & D. Capital Corp. v. Gilmaker* (1988) 204 Cal.App.3d 671, 680.)

"The recovery of deposition costs does not depend on whether the deponent ultimately testifies at trial." *Chaaban v. Wet Seal, Inc.*, 203 Cal. App. 4th 49, 57 (2012).

First, Defendant argues that Plaintiff fails to provide evidence of items 4(g) and 4 (h). Plaintiff's opposition, however, does offer sufficient evidence of these charges. (See Opposition, Ex. 7-9).

Second, Defendant contends that the deposition of Michael Weinstein, M.D. and Luke Macyszyn, M.D. were Defendant's retained medical experts. Defendant contends that Plaintiff is not allowed to recover expert witness fees as a cost item.

Expert fees not ordered by the court are generally not allowable as costs, except when expressly authorized by law. (Code Civ. Proc., § 1033.5, subd. (b)(1).)

However, expert fees that are incurred post-998 offer are recoverable that are "actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the plaintiff, in addition to plaintiff's costs."" (Code Civ. Proc., § 998, subd. (d); see *Rojas v. HSBC Card Services Inc.* (2023) 93 Cal.App.5th 860, 897). As the court found above, Plaintiff made a valid §998 offer, which Defendant rejected, and obtained an outcome at trial that was more favorable. Each of Defendant's experts were deposed after defendant refused Plaintiff's §998 offer. Costs related to Plaintiff's deposing Defendant's two experts are recoverable.

Finally, Defendant argues that Plaintiff cannot seek costs incurred for deposing Plaintiff's treating physicians, who were non-retained experts. Again, Plaintiff incurred the costs to take the depositions of both non-